

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

June 1, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50.	Duran v. General Motors, LLC 2025-01493533	Defendant General Motors, LLC's Demurrer to the First Amended Complaint ("FAC") is OVERRULED. Defendant GM demurs to the fourth and fifth causes of action of the FAC. Fourth Cause of Action – Breach of the Implied Warranty of Merchantability "The statute of limitations for breaches of the implied warranty of merchantability is four years." (<i>Montoya v. Ford Motor Company</i> (2020) 46 Cal.App.5th 493, 495.) Courts have applied Commercial Code section 2725 to claims arising from an implied warranty. (<i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297, 1305-1306.) The future performance exception articulated within Commercial Code section 2725, subdivision (2), "must be narrowly construed." (<i>Cardinal Health 301, Inc. v. Tyco Electronics Corp.</i> (2008) 169 Cal. App. 4th 116, 130.) The exception "applies only when the seller has expressly agreed to warrant its product for a specific and defined period of time." (<i>Ibid.</i>) Consequently, the California Court of Appeal has interpreted and applied the future performance exception almost exclusively in the express warranty context. (<i>Id.</i> at pp. 129-131 (citing cases)). To emphasize this point, the <i>Cardinal Health</i> court stated that, "[b]ecause an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held [that] it is not a warranty that explicitly extends to future performance of the goods." (<i>Id.</i> at pp. 133-134.) Notably, however, "[o]ne innovation of the Song-Beverly Act is an express provision for a duration of the implied warranty of merchantability." (<i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297, 1304.) With respect to Song-Beverly Act claims, "[t]he duration of the implied warranty of merchantability and where present the implied warranty of fitness shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable." (Civ. Code, § 1791.1, subd. (c).) Based on the above, the reasoning articulated in <i>Cardinal Health</i> does not appear applicable: In the context of a Song-Beverly claim, an implied warranty has a "specific and defined period of time." The Fourth Cause of Action accrued "when

	the breach [was] or should have been discovered.” (Cal. U. Com. Code, § 2725, subd. (2).) “A plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer.” (<i>E-Fab, Inc. v. Accountants, Inc. Services</i> (2007) 153 Cal.App.4th 1308, 1319.) Here, Plaintiffs obtained the Vehicle on August 25, 2019. Thereafter, Plaintiffs allegedly experienced defects and non-conformities in the Vehicle including, but not limited to, harsh shifts, slipping in gear, jerking or jerky shifts, abnormal loud noises, check engine lights, engine misfire, and the windows do not function. (FAC, ¶ 12.) From December 28, 2019, to October 7, 2024, Plaintiffs presented their Vehicle to Defendant’s authorized repair facilities. (FAC, ¶¶ 13-16.) As to each of these instances, the FAC alleges the facility “advised the Vehicle had been repaired and was working as designed.” (Id.) Plaintiffs allege they had no way of uncovering Defendant’s deception regarding the repairs because Defendant performed various diagnostics and/or undertook repairs and claimed that nothing was wrong with the Vehicle. (FAC, ¶¶ 18-19.) Additionally, regardless of whether delayed discovery is applied, the repair allegations support tolling. Commercial Code section 2725 makes clear that this section “does not alter the law on tolling of the statute of limitations....” (Cal. U. Com. Code, § 2725, subd. (4).) “Tolling during a period of repairs generally rests upon the same legal basis as does an estoppel to assert the statute of limitations, i.e., reliance by the plaintiff on the words or actions of the defendant that repairs will be made.” (<i>Cardinal Health, supra</i>, 169 Cal.App.4th at pp. 133-134; See also <i>Aced v. Hobbs-Sesack Plumbing Co.</i> (1961) 55 Cal.2d 573, 585 [“The statute of limitations is tolled where one who has breached a warranty claims that the defect can be repaired and attempts to make repairs.”].) In this case, the FAC alleges consistent repairs and representations that defects were cured between December 28, 2019, and October 7, 2024. Such repair allegations support tolling, and making the filing of the FAC timely for purposes of a demurrer. (<i>Geneva Towers Ltd. Partnership v. City of San Francisco</i> (2003) 29 Cal.4th 769, 781 [any statute
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of limitations challenge must “clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.”] emphasis added; internal citation omitted.)

Accordingly, the demurrer to the fourth cause of action is OVERRULED.

Fifth Cause of Action – Fraudulent Inducement-Concealment

a. Statute of limitations

Code of Civil Procedure section 338(d) provides that an action for fraud must be brought within three years. Such a claim does not accrue, however, “until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc. § 338(d).)

Where a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that otherwise appears on its face to be time-barred, he or she must specifically plead facts which, if proved, would support the theory. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641.)

“When a plaintiff alleges the fraudulent concealment of a cause of action, the same pleading and proof is required as in fraud cases: the plaintiff must show (1) the substantive elements of fraud, and (2) an excuse for late discovery of the facts. [Citation.] With respect to ... the belated discovery, the complaint must allege (1) when the fraud was discovered; (2) the circumstances under which it was discovered; and (3) that the plaintiff was not at fault for failing to discover it or had no actual or presumptive knowledge of facts sufficient to put him on inquiry.” (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 900.)

Here, the FAC alleges that on August 25, 2019, Plaintiffs entered into a warranty contract with GM. (FAC, ¶ 6.) Plaintiffs filed suit against GM on October 7, 2024. As such, unless Plaintiffs allege sufficient facts in support of delay discovery or tolling, the three-year statute of limitations for this claim expired well before the original Complaint was filed.

Defendant argues the FAC does not include any allegations that justify their late filing, citing to the alleged “[d]efects and nonconformities to warranty manifested themselves” during the “express warranty period.” (FAC, ¶ 23.) Therefore, Defendant argues that Plaintiffs cannot sustain the burden of demonstrating that they did not discover with reasonable

		diligence the actions giving rise to their claim within the applicable limitations period. However, as argued by Plaintiffs, even though Plaintiffs' vehicle was showing signs of nonconformity earlier, Plaintiffs only discovered Defendant's fraudulent conduct of selling defective transmissions shortly before the complaint was filed. (FAC, ¶¶ 36, 38, 47-50.) Up until that time, Defendant had represented that either there was nothing wrong with the Vehicle or it had been repaired. Accordingly, the demurrer based on statute of limitations is OVERRULED. b. Failure to plead sufficient facts to state a cause of action for fraud "[T]he necessary elements of a concealment/suppression claim consist of (1) misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (scienter); (3) intent to defraud (i.e., to induce reliance); (4) justifiable reliance; and (5) resulting damage. Suppression of a material fact is actionable when there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship." (<i>Dhital v. Nissan North America</i> (2022) 84 Cal.App.5th 828, 843 [cleaned-up].) In <i>Dhital</i>, the court found a cause of action for fraudulent concealment was sufficiently plead where the "plaintiffs alleged the CVT transmissions installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective; Nissan knew of the defects and the hazards they posed; Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information; Nissan intended to deceive plaintiffs by concealing known transmission problems; plaintiffs would not have purchased the car if they had known of the defects; and plaintiffs suffered damages in the form of money paid to purchase the car." (<i>Dhital</i>, supra, 84 Cal.App.5th at 844.) Similarly, Plaintiffs allege defects in the transmission resulting in dangerous functional impairments including: (1) hesitation or delayed acceleration, (2) harsh or hard shifting, (3) jerking, (4) shuddering, (5) surging and/or inability to control the vehicle's speed, acceleration, or deceleration, (6) symptoms requiring reprogramming of the transmission control module ("TCM") and/or powertrain control module ("PCM"), and (7) failure or replacement of the transmission ("Transmission Defect"). (FAC, ¶ 75.) The FAC further alleges Defendant had knowledge of such defects prior to Plaintiffs acquiring the Vehicle through sources
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	not available to consumers such as Plaintiffs, including but not limited to pre-production and post-production testing data; early consumer complaints about the Transmission Defect made directly to Defendant GM and its network of dealers; aggregate warranty data compiled from Defendant GM's network of dealers; testing conducted by Defendant GM in response to these complaints; as well as warranty repair and part replacements data received by Defendant GM from Defendant GM's network of dealers, amongst other sources of internal information. (FAC, ¶ 76.) Prior to purchasing the Vehicle, Plaintiffs reviewed marketing materials and GM's advertisement, and interacted with sales representatives. Had they known about the defects, Plaintiffs would not have purchased the vehicle. (FAC, ¶ 77.) Defendant contends Plaintiffs failed to allege a transactional relationship that would give rise to a duty to disclose. This argument was rejected in <i>Dhital</i>, supra. The court in <i>Dhital</i>, held that a fraud claim was not barred even though there was no direct relationship between the buyer and manufacturer, because the buyer purchased from an authorized dealership, the manufacturer backed the vehicle with an express warranty, and the manufacturer's authorized dealerships were its agents for purposes of vehicle sales. (<i>Dhital</i>, supra, 84 Cal.App.5th at 844.) All such facts are alleged in the FAC. Accordingly, the demurrer on this ground is OVERRULED. c. Economic Loss Rule The economic loss rule "precludes recovery for purely economic loss due to disappointed expectations, unless the plaintiff can demonstrate harm above and beyond a broken contractual promise. Conduct amounting to a breach of contract becomes tortious only when it also violates a duty independent of the contract arising from principles of tort law." <i>Robinson Helicopter Co. v. Dana Corp.</i> (2004) 34 Cal.4th 979, 988-989 (also noting prior application of economic loss rule to negligence cause of action). Defendant relies on <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1 in support of its economic loss argument. However, <i>Rattagan</i> is not a Song-Beverly case. Moreover, it was reframed as specifically about fraud-in-the-performance, and Plaintiffs have alleged fraud-in-the-inducement, so the fraud-in-the-performance test in <i>Rattagan</i> does not apply. <i>Dhital</i> is the appropriate precedent here, as it specifically addressed fraudulent inducement by concealment claims as
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		well within the context of the Song-Beverly Act. <i>Dhital</i> held that the economic loss rule does not bar claims for fraudulent inducement, including, as alleged here, through fraudulent concealment. (Id., p. 843.) Accordingly, the demurrer on this ground is OVERRULED. The case management conference is continued to October 12, 2026 at 9:00 a.m. in Department C28. Defendant shall give notice of this ruling.
51.	Gip v. General Motors LLC 2025- 01484462	Plaintiff Logan Tu Gip's motion for attorney fees and costs is GRANTED. (Code Civ. Proc., §§ 1032, subd. (b) [prevailing party entitlement to costs generally], 1033.5, subd. (a)(10)(B) [recoverable costs may include attorney fees pursuant to statute; Civ. Code, § 1794, subd. (d) [prevailing party in Song-Beverly action entitled to reasonable fees/costs].) Plaintiff is awarded attorney fees in the amount of \$11,925.00, which amount the court finds was reasonably and necessarily incurred. The court has reduced the fees sought based on a reduced paralegal hourly rate, fees incurred for clerical tasks, and excessive fees claimed for the fee motion itself that did not occur; however, the court finds that the attorney's hourly rates appear proper. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [reasonable hourly rate "is that prevailing in the community for similar work"]; <i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 700 ["determination of the 'market rate' is generally based on the rates prevalent in the community where the court is located"]; <i>Nishiki v. Danko Meredith, APC</i> (2018) 25 Cal.App.5th 883, 899 ["a trial court has its own expertise in the value of legal services performed in a case ... and it may rely on its own familiarity with the local legal market in setting the hourly rate"].) Plaintiff's request for a "Lodestar Enhancement," presumably a multiplier, is DENIED. This appears to be a routine lemon law case, with no unusual facts or novel legal issues requiring exceptional skill. (<i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 248, citing <i>Press v. Lucky Stores, Inc.</i> (1983) 34 Cal.3d 311, 322, fn. 12 [multiplier factors].) Plaintiff's request for \$835.55 in costs is also DENIED. Plaintiff has already filed a Memorandum of Costs for this amount. (ROA 24.) Defendant did not seek to strike or tax that memorandum. Thus, this separate request for costs is duplicative.

		The court orders this settled case dismissed, without prejudice with the court retaining jurisdiction pursuant to CCP § 664.4. Plaintiff shall give notice of this ruling.
52.	Sehgal v. Gokal Law Group, Inc. 2026- 01546794	Defendants Gokal Law Group, Inc. Abbas K. Gokal and Alison S. Gokal's Motion to Compel Arbitration is GRANTED. (Code Civ. Proc. §1281.2.) Plaintiffs Arunpal Sehgal, MD, Gurkipal Singh Segal, MD, and Paramjot Mann, MD shall submit their claims to binding arbitration before JAMS in accordance with the agreement to arbitrate. Defendants have met their burden to demonstrate the existence of a valid agreement to arbitrate that covers Plaintiffs' claims. Specifically, Defendants point to an agreement to arbitrate contained in the agreements for legal services entered into between Gokal Law Group, Inc. and Plaintiffs. The arbitration agreement provides: 11. ARBITRATION OF DISPUTES. THE FIRM APPRECIATES THE OPPORTUNITY TO SERVE AS THE CLIENT'S ATTORNEY AND ANTICIPATE A PRODUCTIVE, HARMONIOUS RELATIONSHIP. <u>IF ANY DISPUTE ARISES BETWEEN CLIENT AND/OR THE FIRM REGARDING SERVICES OR BILLINGS OR ANY OTHER MATTER RELATING TO THE PROVISIONS OR DUTIES UNDER THIS AGREEMENT, INCLUDING BUT NOT LIMITED TO, CLAIMS OF NEGLIGENCE OR MALPRACTICE ARISING OUT OF OR RELATING TO THE LEGAL SERVICES PROVIDED BY THE FIRM TO THE CLIENT, SUCH DISPUTE SHALL BE SUBMITTED TO BINDING ARBITRATION, CONDUCTED IN ORANGE COUNTY, CALIFORNIA, BEFORE A RETIRED JUDGE IN ACCORDANCE WITH THE RULES OF JAMS, THE AMERICAN ARBITRATION ASSOCIATION, OR ANY OTHER ARBITRATION FORUM AGREED TO BY THE CLIENT, AND THE FIRM.</u> ANY FEE DISPUTES SHALL BE ARBITRATED ACCORDING TO GUIDELINES AND STANDARDS ADOPTED BY THE STATE BAR OF CALIFORNIA OR LOCAL BAR ASSOCIATION, IF ANY, THEN IN EFFECT. ANY OTHER DISPUTE SHALL BE ARBITRATED ACCORDING TO THE ARBITRATION RULES OF THE ORANGE COUNTY BAR ASSOCIATION, IF ANY, THEN IN EFFECT; AND IF THERE ARE NO

SUCH RULES IN EFFECT, THEN IN ACCORDANCE WITH THE RULES OF THE AMERICAN ARBITRATION ASSOCIATION.

THE DECISION OF THE ARBITRATOR(S) SHALL BE FINAL AND BINDING. THE ARBITRATOR(S) SHALL HAVE THE DISCRETION TO ORDER THE LOSING PARTY TO REIMBURSE THE PREVAILING PARTY FOR ALL COSTS AND FEES INCURRED IN CONNECTION WITH THE ARBITRATION, INCLUDING ATTORNEYS' FEES AND THE ARBITRATORS' FEES.

IF THE CLIENT OR THE FIRM SHOULD REFUSE TO SUBMIT TO ARBITRATION, SUCH PARTY MAY BE COMPELLED TO ARBITRATE UNDER CALIFORNIA LAW. THE CLIENT AND THE FIRM ACKNOWLEDGE THE FOREGOING AND THAT THIS MUTUAL AGREEMENT FOR BINDING ARBITRATION IS VOLUNTARY.

(See ROA 21 (Larson Decl.) at Exhibits A, B, and C [emphasis added].)

Plaintiffs argue that the clause in the agreement that covered claims are to be submitted to arbitration "in accordance with the rules of JAMS, the American Arbitration Association, or any other arbitration forum agreed to by the client, and the firm" entitles Plaintiffs to refuse to submit their claims to arbitration with JAMS. Plaintiffs' misinterpret the plain language of the clause which only requires additional agreement of the parties if claims are to be arbitrated in a forum other than JAMS or the American Arbitration Association.

Plaintiffs also argue that Abbas Gokal and Alison Gokal do not have standing to enforce the arbitration agreement because they are nonsignatories to the arbitration agreement. However, a nonsignatory may enforce an agreement to arbitrate where the nonsignatory has sufficient identity with a party to the arbitration agreement, such as an agency relationship or an employment relationship. (See *Jenks v. DLA Piper Rudnick Gray Cary US LLP* (2015) 243 Cal.App.4th 1, 8-9.) Here, there is sufficient identity among parties to find that Abbas Gokal and Alison Gokal may enforce the arbitration agreement as non-signatories.

Since Plaintiffs do not raise any argument as to the existence of the agreement to arbitrate or identify any defenses to its enforcement, and the claims alleged in the Complaint are within the scope of the arbitration agreement, Plaintiffs must

		submit their claims to arbitration in accordance with the terms of the arbitration agreement. The case management conference is VACATED. This matter is STAYED pending completion of the arbitration proceedings or until further order of the court. (Code Civ. Proc. §1281.4.) A status conference re: Status of ADR proceedings is set for January 22, 2027 at 9:00 a.m. in this department. Five days before the status conference, the parties are ordered to submit a joint statement describing the status of the arbitration. Defendants shall provide notice of this ruling.
53.	Fernandez v. FCI Lender Services, Inc. 2024-01374564	Plaintiff/Cross-Defendant Virginia Fernandez's Demurrer to the First Amended Cross-Complaint is STRICKEN as untimely. The First Amended Cross-Complaint was filed and served on 10/20/25. (ROA 417.) Cross-Defendant did not file this demurrer until 3/12/26. Therefore, it is untimely as it was not filed within 30 days of the challenged pleading. (Code Civ. Proc., § 430.40(a).) The case management conference is continued to October 12, 2026 at 9:00 a.m. in Department C28. Cross-defendant shall file an answer within 10 days. Defoort shall give notice of this ruling.
54.	Jianan International USA Holdings, Inc. v. USS Cal Builders, Inc. 2025-01506043	Cross-defendant Jianan International USA Holdings, Inc.'s demurrer to USS Cal Builders, Inc.'s Cross-complaint is OVERRULED. (Code Civ. Proc., § 430.10, subd. (e).) Moving party shall file an Answer to the Cross-complaint within 10 days. <u>1st cause of action: breach of contract.</u> This cause of action states sufficient facts. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [elements]; Cross-complaint, ¶¶ 14, 17-19, Ex. 1 [existence of Subscription Agreement and terms], 16 [performance], 21, 24 [breach], 26 [proximately caused damages].) While moving party contends that the term "assist" in §§ 10.2, 10.4, and 11.2 of the Subscription Agreement is too vague to be enforceable, this cannot be determined on demurrer, particularly as the "assistance" is tied to specific criteria and benchmarks. (See <i>Tiffany Builders, LLC v. Delrahim</i> (2023) 97 Cal.App.5th 536, 544-545 [interpretation of indefinite contract terms].) Further, the alleged breaches are not limited to "assistance." (Cross-complaint, ¶ 19, [alleging

	moving party breached § 10.5(a) of the Subscription Agreement (Ex. 1), requiring moving party to appoint two “qualified employees ... <u>to participate in the Company's marketing operations in full-time</u> and assist in the Company sales growth and profit margin growth” (emphasis added), by providing only one unqualified employee who “was unable to meaningfully participate in marketing or sales activities in the United States;” see also <i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1682 [“demurrer does not lie to a portion of a cause of action”]; <i>Quelimane Co., Inc. v. Stewart Title Guar. Co.</i> (1998) 19 Cal.4th 26, 38-39 [a complaint is good against a general demurrer so long as it states a valid cause of action under any theory].) Finally, any statute of limitations issue does not “clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action <u>may</u> be barred.” (<i>Geneva Towers Ltd. Partnership v. City of San Francisco</i> (2003) 29 Cal.4th 769, 781; emphasis added; internal citation omitted.) <u>2nd cause of action: fraud; 4th cause of action: negligent misrepresentation.</u> These causes of action state sufficient facts. (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638 [intentional misrepresentation elements], 645 [specific pleading required]; <i>Small v. Fritz Companies, Inc.</i> (2003) 30 Cal.4th 167, 173-174 [negligent misrepresentation elements], 184 [specific pleading required]; Cross-complaint, ¶¶ 11-13, 28, 46 [alleging that during negotiations in 2017 and 2018, and prior to the execution of the Subscription Agreement on 11-23-18, Liu Haoxue, aka “Mr. Leo,” the Vice President of MP’s parent company, “repeatedly told USS Cal Builders’ president, Allen Othman, that Zhongqing Jianan – and, by extension, Jianan – were very well connected with Chinese developers and that USS Cal Builders would get new clients and new construction contracts if USS Cal Builders partnered with Zhongqing Jianan Construction Group via its U.S. subsidiary, Jianan”], 29-31, 48 [falsity, scienter, reliance], 50 [reliance], 32, 51 [proximately caused damages].) Moving party contends these claims fail because (1) the alleged misrepresentation that it was “very well connected with Chinese developers” is not false, “as that assertion is both true and known to be true by USS Cal (and anyone who performs an internet search for Zhongqing Jianan Group);” and (2) the alleged misrepresentation that cross-complainant “would get new clients and new construction contracts” is an inactionable opinion regarding future events. (Demurrer at
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		5:24-6:10, and FN 3.) This argument fails. Even if moving party is correct that the representation regarding future events is insufficient, which is not apparent from the face of the pleading, the Cross-complaint alleges that both representations are false (§§ 29, 31), which allegation the court must accept as true. (<i>Del E. Webb Corp. v. Structural Materials Co.</i> (1981) 123 Cal.App.3d 593, 604 [for purposes of demurrer, the allegations of the challenged pleading must be accepted as true].) Further, like the first cause of action, any timeliness defect is not “clearly and affirmatively” shown on the face of the Cross-complaint. (<i>Geneva Towers Ltd. Partnership v. City of San Francisco, supra</i> at 781.) <u>3rd cause of action: false promise.</u> This cause of action states sufficient facts. (CACI 1902 [elements]; Cross-complaint, §§ 17-19, 36, 37 [false promises in Subscription Agreement], 38, 39 [scienter], 41 [lack of awareness, reliance], 42 [proximately caused damages].) Moving party’s arguments as to this cause of action fail for the same reasons as discussed above. The case management conference is continued to October 12, 2026 at 9:00 a.m. in Department C28. Cross-complainant shall give notice of this ruling.
55.	Berentis v. Seybert 2024-01430186	Attorney Arthur Petrouisian’s motion to be relieved as attorney of record for plaintiff Jayson Berentis is GRANTED. The order shall become effective upon the filing of the proof of service of the executed order. Moving counsel Petrouisian shall give notice of this ruling.
56.	Njeri v. Tesla, Inc. 2025-01491391	Defendant Tesla, Inc.’s motion to compel arbitration is GRANTED. (See Code Civ. Proc., § 1281.2.) Plaintiff Irene Njeri is ORDERED to arbitrate her claims against defendant in accordance with the terms of the arbitration provision in the parties’ Motor Vehicle Order Agreement (MVOA). (See Kim Decl. at Ex. 1 [MVOA]; Sanders Decl. at Ex. 1 [same].) Defendant has met its burden to demonstrate the existence of an agreement to arbitrate the controversy. (See <i>Ramirez v. Golden Queen Mining Co., LLC</i> (2024) 102 Cal.App.5th 821, 830-832 [three-step burden shifting process]; <i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 755 [same]; see also Kim Decl. §§ 2-7, Ex. 1 [MVOA].) Plaintiff has not challenged

	or produced any evidence disputing the existence or authenticity of the MVOA or the arbitration agreement therein. (See <i>Ramirez v. Golden Queen Mining Co., LLC</i>, at p. 837 [if opposing party fails to carry her second-step burden, the burden shifting process stops there]; <i>Opp.</i>, in passim; <i>Sanders Decl.</i>, in passim; see also <i>id.</i> at Ex. 1 [MVOA].) Plaintiff has failed to meet her burden to demonstrate a defense to enforcement. (See <i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972 [burden].) Plaintiff has raised a single defense to enforcement based on unconscionability. (See <i>Ramirez v. Charter Communications, Inc.</i> 16 Cal.5th at 492-493 [unconscionability, generally]; <i>Baltazar v. Forever 21, Inc.</i> (2016) 62 Cal.4th 1237, 1243 [same].) There is a low degree of procedural unconscionability as the arbitration agreement appears in a standardized, preprinted form contract offered by the party with superior bargaining power on a take-it-or-leave-it basis. (See <i>Kim Decl.</i> ¶¶ 3-4 [plaintiff would not have been able to place the order for the vehicle without agreeing to the MVOA], Ex. 1.) “ ‘[T]he adhesive nature of’ an arbitration agreement ‘is sufficient to establish some degree of procedural unconscionability.’ [Citations.]” (<i>Swain v. LaserAway Medical Group, Inc.</i> (2020) 57 Cal.App.5th 59, 67-68.) This is so notwithstanding the existence of an opt-out provision. (<i>Id.</i> at p. 69 [“an opt out provision does not insulate an arbitration agreement from a finding of procedural unconscionability”].) As for defendant’s alleged failure to provide a copy of the applicable arbitration rules, it does not add to the procedural unconscionability of the agreement because plaintiff does contend that anything was hidden in the rules or that the rules are substantively unconscionable. (<i>Nguyen v. Applied Medical Resources Corp.</i> (2016) 4 Cal.App.5th 232, 249; see <i>Baltazar, supra</i>, 62 Cal.4th at p. 1246.) Plaintiff has failed, however, to demonstrate any substantive unconscionability. (See <i>Baltazar, supra</i>, 62 Cal.4th at pp. 1243-1244 [both procedural and substantive unconscionability must be present before court may refuse to enforce a contract based on the doctrine of unconscionability]; <i>Ramirez v. Charter Communications, Inc., supra</i>, 16 Cal.5th at pp. 492-493 [although adhesion contracts are procedurally unconscionable, they nevertheless “remain valid and enforceable unless the resisting party can also show that one or more of the contract’s terms is substantively
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unconscionable or otherwise invalid”]; see also *id.* at pp. 494-495 [substantive unconscionability, generally].)

Specifically, plaintiff contends the MVOA is substantively unconscionable because (1) the arbitration provision “allows for a choice of arbitration forum – but only for the party ‘electing’ to arbitrate,” allowing “Tesla [to] ‘elect’ both to arbitrate in the first place, and choose the forum, and choose the rules”; (2) “the arbitration-cost provisions are substantively unconscionable and clearly violate ... the minimum due process standards for consumer arbitrations,” as they serve to “discourage[] ... buyers from seeking to enforce their legal rights, as buyers are potentially faced with bearing exorbitant arbitration costs and expenses they may have to reimburse to Tesla”; and (3) the “[a]rbitration would impose prohibitive costs on Plaintiff....” (Opp. at pp. 6-7.) Plaintiff also appears to suggest that the arbitration clause somehow gives the defendant the sole discretion to select the arbitrator. (See *id.* at p. 7.)

All of these arguments fail. As an initial matter, the arbitration provision in the MVOA does not provide for a choice of arbitral forum and does not grant Tesla the sole discretion to select the arbitrator. It requires arbitration of “any dispute arising out of or relating to any aspect of the relationship between [plaintiff] and Tesla ... by a single arbitrator in an arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules.” (Kim Decl. at Ex. 1, p. 3.) This requirement applies equally to both parties. The mere fact that the agreement requires arbitration with AAA does not somehow render the provision “unfair” or “so one-sided as to ‘shock the conscience’ ” such that it is substantively unconscionable. (See *Ramirez, supra*, 16 Cal.5th at pp. 494-495.) Nothing suggests the AAA will not fairly administer the arbitration. (See *id.* at p. 506 [“Normally, we assume the arbitrator will act reasonably and in conformity with the law.”].)

To the extent plaintiff may be complaining about the fact that Tesla drafted the agreement and in doing so was able to choose AAA as the arbitration provider—this presents an issue of procedural unconscionability (a contract presented on a take-it-or-leave-it basis without a meaningful choice or opportunity to negotiate its terms) and not substantive unconscionability (unfair or one-sided terms).

As for the cost provisions that purportedly leave buyers like plaintiff “potentially faced with bearing exorbitant arbitration costs and expenses,” and supposedly “impose prohibitive

		costs on Plaintiff” (Opp. at p. 7)—the cost provision in the MVOA requires defendant to bear all costs of arbitration. It states: “[Tesla] will pay all AAA fees for any arbitration, which will be held in the city or county of [plaintiff’s] residence.” (Kim Decl. at Ex. 1, p. 3; Sanders Decl. at Ex. 1, p. 3.) Plaintiff has not acknowledged or addressed this language in her opposition brief, and has not shown or explained how she may have to shoulder any costs unique to arbitration under the terms of the MVOA. (See Opp., in passim.) Plaintiff has therefore failed to show that the agreement’s cost provisions are substantively unconscionable. (See <i>Engalla, supra</i>, 15 Cal.4th at p. 972 [burden]; see also <i>City of Monterey v. Carrnshimba</i> (2013) 215 Cal.App.4th 1068, 1099 [it is not the court’s role to develop a party’s argument for him]; <i>Cahill v. San Diego Gas & Electric Co.</i> (2011) 194 Cal.App.4th 939, 956 [same]; <i>People v. Lee</i> (2008) 161 Cal.App.4th 124, 130 [“It is not the court’s function to marshal evidence for the parties or to make tactical judgments about how the parties should present their arguments.”].) Defendant’s request for judicial notice is GRANTED. (See Evid. Code, § 452, subd. (d).) The case management conference is VACATED. The court ORDERS this action stayed pending completion of arbitration or until further order of the court. (Code Civ. Proc., § 1281.4.) The court sets a status conference regarding the arbitration for January 22, 2027 at 9:00 a.m. in Department C28. Five days before the scheduled conference, the parties are ordered to submit a joint statement describing the status of the arbitration. Defendant shall give notice of this ruling.
57.	Doe 9011 v. Fullerton School District 2025-01473413	Defendant Fullerton School District’s unopposed motion for leave to file a cross-complaint is GRANTED. The proposed cross-complaints is compulsory, and is governed by C.C.P. § 426.50. It provides that “the court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith.” This provision “shall be liberally construed to avoid forfeiture of causes of action.” Here, there is no evidence of bad faith.

		Defendant has attached the proposed pleading to the moving papers. However, defendant must electronically file the cross-complaint separately with the clerk's office so that there is a proper record of the pleading. Defendant shall separately file the cross-complaint within three days. Defendant shall give notice of this ruling.
58.	Ray v. General Motors, LLC 2023- 01318172	Plaintiff Adam Ray's motion for attorney fees and costs is GRANTED. (Code Civ. Proc., §§ 1032, subd. (b) [prevailing party entitlement to costs generally], 1033.5, subd. (a)(10)(B) [recoverable costs may include attorney fees pursuant to statute; Civ. Code, § 1794, subd. (d) [prevailing party in Song-Beverly action entitled to reasonable fees/costs].) Plaintiff is awarded attorney fees in the amount of \$13,793.00, which amount the court finds was reasonably and necessarily incurred. The court has reduced the fees sought based on excessive fees claimed for a motion to compel, and based on hours solely related to the fraud claim (which is not within the statutory mandate under which Plaintiff is awarded fees). The court finds that the attorney's hourly rates appear proper. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [reasonable hourly rate "is that prevailing in the community for similar work"]; <i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 700 ["determination of the 'market rate' is generally based on the rates prevalent in the community where the court is located"]; <i>Nishiki v. Danko Meredith, APC</i> (2018) 25 Cal.App.5th 883, 899 ["a trial court has its own expertise in the value of legal services performed in a case ... and it may rely on its own familiarity with the local legal market in setting the hourly rate"].) Plaintiff's request for a multiplier is DENIED. This appears to be a routine lemon law case, with no unusual facts or novel legal issues requiring exceptional skill. (<i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 248, citing <i>Press v. Lucky Stores, Inc.</i> (1983) 34 Cal.3d 311, 322, fn. 12 [multiplier factors].) Plaintiff's request for \$1,844.12 in costs is also GRANTED. Plaintiff's evidentiary objections to Defendant's declaration are OVERRULED. The court orders this settled case dismissed, without prejudice with the court retaining jurisdiction pursuant to CCP § 664.4.

		Moving plaintiff shall give notice of this ruling.
59.	Maranwe v. Saunders & Associates, APC 2025-01499956	The demurrer and motion to strike by defendants Saunders & Associates, APC, Vasili Papas, Gary Saunders, and Morena Elias are CONTINUED to July 20, 2026 at 2:00 p.m. in Dept. C28. Plaintiff's motion for sanctions is also continued to that same date. Defendants' demurrer and motion to strike were originally heard on 3-16-26, and continued on that date to allow moving defendants to file declarations compliant with Code Civ. Proc., §§ 430.41 and 435.5, with plaintiff ordered to give notice. (Defendants did not appear on 3-16-26.) (ROA 57 [3-16-26 minute order].) However, there is no record that plaintiff gave notice as ordered. And defendants failed to file the ordered declarations. Further, there is no proof of service of plaintiff's opposition to the demurrer and motion to strike. (ROA 52.) There is also no proof of service of plaintiff's motion for sanctions. (ROA 46, 48.) There is no responsive pleading by defendants to the opposition to the demurrer and motion to strike, or to the motion for sanctions. (See <i>Carlton v. Quint</i> (2000) 77 Cal.App.4th 690, 698 [response on merits can waive service defect].) Accordingly, all three motions are continued. As to the demurrer and motion to strike, the Court orders the parties to engage in meet and confer efforts in compliance with Code Civ. Proc., §§ 430.41 and 435.5 within 10 days of today's date, and orders counsel for moving defendants to file a supplemental declaration demonstrating such compliance at least five court days prior to the continued hearing. Plaintiff is ordered to serve his opposition to the demurrer and motion to strike (ROA 52) on defendant within five court days of today, and to file proof of service of same at least five court days prior to the continued hearing date. Any reply may be filed and served per Code Civ. Proc., § 1005, subd. (b). As to plaintiff's motion for sanctions, plaintiff is ordered to serve the motion (ROA 46, 48) on defendant within five court days of today's date, and to file proof of service of same at least five court days prior to the continued hearing date. Any opposition and/or reply may be filed and served per Code Civ. Proc., § 1005, subd. (b). Plaintiff is also cautioned to file proper proofs of service in the future.

		The case management conference is also continued to July 20, 2026 at 2:00 p.m. Clerk shall give notice of this ruling.
60.	Rhee v. Lee 2023-01327410	Defendant Carole Lee's motion for summary judgment is DENIED. Defendant Lee has not met her initial burden to show that this action has no merit; that plaintiff cannot prove an element or some elements of a cause of action; or that a complete defense is established as a matter of law entitling defendant to judgment. <i>C.C.P.</i> § 437c (p) (2), and <i>Hunter v. Pacific Mechanical Corp.</i> (1995) 37 Cal.App.4th 1282, 1287. Lee offered no evidence in support of the motion. Code of Civil Procedure § 437c(b)(1) explicitly requires that summary judgment motions "shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken." Further, Lee has not submitted a Separate Statement in support of her motion, in contravention of Code of Civil Procedure section 437c(b)(1) which explicitly requires "[t]he supporting papers shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed." Each material fact stated must be followed by a reference to the supporting evidence. <i>C.C.P.</i> § 437c. Lee does submit some documents in support with her reply to this motion, but those documents were not considered by the court. As explained in <i>San Diego Watercrafts, Inc. v. Wells Fargo Bank</i>, (2002) 102 Cal.App.4th 308, a moving party may not rely on new evidence filed with its reply papers. See also <i>Moore v. William Jessup University</i>, (2015) 243 Cal.App.4th 427, wherein the court reiterated that generally a party moving for summary judgment may not rely on new evidence filed with its reply papers. Finally, the documents proffered in reply are not accompanied by a verified translation. California Rules of Court, Rule 3.1110 specifically provides that "[e]xhibits written in a foreign language must be accompanied by an English translation, certified under oath by a qualified interpreter." There is no certification under oath by the interpreter of the subject documents. As a result, these documents are of no evidentiary value. Defendant Lee shall give notice of this ruling.

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